

AMENDMENT AND BASIC STRUCTURE

ARTICLE 368 • LIMITED CONSTITUENT POWER • CONSTITUTIONAL IDENTITY

Read top to bottom: routes → procedure → doctrine → application → evaluation → answer spine

Source/legal check: 7 September 2026 | One continuous revision rail

01

THREE ROUTES: FLEXIBILITY WITH ENTRENCHMENT

OUTSIDE ARTICLE 368

- Articles 2-4, 11, 169, 239A
- Fifth para 7; Sixth para 21
- Ordinary law under exact enabling text

SPECIAL MAJORITY

- Total-membership majority
- Plus $\geq 2/3$ present and voting
- Each House separately

ANSWER-GRABBING LINE India grades the cost of change, then subjects every route to constitutional supremacy.

TRAP: a constitutional effect does not automatically make a measure an Article 368 amendment.

02

MAJORITY ARITHMETIC: DO NOT MIX THE DENOMINATORS

TOTAL MEMBERSHIP

- Full sanctioned strength
- Vacancies do not reduce it
- More than half required

PRESENT AND VOTING

- Ayes + noes form denominator
- Abstentions excluded
- At least two-thirds required

ANSWER-GRABBING LINE Both Article 368 limbs operate simultaneously; calculate each and use the higher minimum.

TRAP: "special majority" is not one number or one denominator.

03

ARTICLE 368 PROCEDURE: SEPARATE HOUSES, NO SHORTCUT

INTRODUCE

Either House
Minister or private member
No prior Presidential recommendation

PASS

Each House separately
Dual special majority
No joint sitting

ANSWER-GRABBING LINE Ordinary legislative institutions exercise a specially constituted and sequentially limited power.

TRAP: no referendum, no special constituent body and no joint sitting.

04

FEDERAL RATIFICATION: THE CLOSED TEXTUAL MAP

ARTICLE 368(2) PROVISIO — RATIFICATION BY NOT LESS THAN HALF THE STATES

✓

majority
and voting
ly

FEDERAL ROUTE

- Same House majorities
- Plus $\geq$ half State legislatures
- Exact proviso subjects only

TING

nominator
d
required

NOT EFFECTIVE MAJORITY

- Effective strength subtracts vacancies
- Used for selected removals elsewhere
- Never import it into Article 368

RATIFY IF NEEDED

Only proviso subjects
 $\geq$ half State legislatures
Before Presidential presentation

ASSENT

President shall assent
No return/withholding
Act controls commencement

ANSWER-GRABBING LINE Primary legislative institutions exercise a specially constituted and sequentially limited power

TRAP: no referendum, no special constituent body and no joint sitting.

04

FEDERAL RATIFICATION: THE CLOSED TEXTUAL MAP

ARTICLE 368(2) PROVISIO — RATIFICATION BY NOT LESS THAN HALF THE STATES

NAMED ARTICLES

54, 55
73, 162
241, 279A

NAMED CHAPTERS

Ch IV Part V
Ch V Part VI
Ch I Part XI

ANSWER-GRABBING LINE State consent protects the federal compact selectively, not every provision with a federal consequence.

TRAP: Governor conditions are outside; Article 241 and Article 279A are expressly inside.

05

ARTICLE 13 DIALOGUE: FROM RIGHTS AMENDABILITY TO IDENTITY

1951

Shankari Prasad
Amendment not Art 13 law
First Amendment upheld

1964/65

Sajjan Singh
Rule reaffirmed
Early doubts in separate opinions

ANSWER-GRABBING LINE Kesavananda did not merely restore earlier law; it converted the conflict into limited constituent power.

TRAP: Golak Nath used prospective overruling but did not create basic structure.

06

KESAVANANDA BHARATI: THE 13-JUDGE, 7:6 SETTLEMENT

WIDE POWER

- Every Part amendable
- Fundamental Rights amendable
- Preamble amendable
- 24th Amendment sustained

IDENTITY LIMIT

- No damage or destruction
- Basic framework survives
- Degree and effect matter
- Article 31C review exclusion failed

ANSWER-GRABBING LINE Every Part may change, but Article 368 cannot turn amendment into constitutional replacement.

TRAP: the holding is an identity limit, not one unanimous catalogue of frozen clauses.

07

APPLICATION AND SELF-ENLARGEMENT: 1975-1980

INDIRA GANDHI 1975

39th Amendment part invalid
Free and fair elections
Rule of law + review

42ND SECTION 4

Article 31C expanded
All Directive Principles
FR-DPSP balance disturbed

DISTRIBUTION + VOICE

Any Seventh Schedule List
State representation in Parliament
Article 368 itself

STATE ROLE

Ratify or refuse passed text
No initiation or rewriting
No UT count or Governor assent

1967

Golak Nath
Amendment treated as law
Prospective overruling

1971

24th: constituent power + assent
25th: property + Art 31C
Parliamentary response

uction
ives
atter
clusion failed

NO CLOSED LIST

- Overlapping judicial opinions
- Features must be attributed
- Transformative reform remains possible
- Severability may preserve valid parts

42ND SECTION 55

Article 368(4)-(5)
Review exclusion
Unlimited-power claim

MINERVA MILLS 1980

Sections 4 and 55 void
Limited power + review basic
FR-DPSP harmony basic

39th Amendment part invalid
Free and fair elections
Rule of law + review

Article 31C expanded
All Directive Principles
FR-DPSP balance disturbed

ANSWER-GRABBING LINE Constitution-created limited power cannot erase its limits and become legally sovereign.

TRAP: section 4 concerns Article 31C; section 55 concerns Article 368(4)-(5).

08

NINTH SCHEDULE: DATE -> RIGHT -> FEATURE -> EFFECT

ORIGIN

First Amendment, 1951
Article 31B + Ninth Schedule
Article 31A is distinct

WAMAN RAO

24 April 1973 cutoff
Pre-cutoff insertions not reopened
Later amendments open to challenge

ANSWER-GRABBING LINE Article 31B cannot become a post-1973 vault against constitutional identity.

TRAP: the date governs the inserting amendment; rights contact alone does not prove invalidity.

09

BASIC FEATURES: CASE-ATTRIBUTED, NOT EXHAUSTIVE

DEMOCRATIC ORDER

- Kesavananda opinions: supremacy, democracy, secularism
- Indira Gandhi: fair elections, rule of law, review
- Bommai: federalism and secularism context

LIMITED GOVERNMENT

- Minerva: limited power + FR-DPSP harmony
- L. Chandra Kumar: Arts 32 and 226/227
- Coelho: rights/basic-feature impact

ANSWER-GRABBING LINE defensible feature claim identifies its constitutional foundation, precedent and functional injury.

TRAP: Bommai was an Article 356 case, not itself an amendment-invalidation case.

10

ORDINARY-LAW FIREWALL AND CURRENT STATUS

ANJUM KADARI 2024

Statute challenge needs competence
Or Part III / another provision
No free-standing basic-structure invalidity

131ST BILL 2026

298 ayes / 230 noes / 528 voting
Total-membership limb passed
Two-thirds limb failed: negatived

ANSWER-GRABBING LINE Use current evidence to illuminate procedure, never to replace the constitutional rule.

TRAP: a defeated Bill creates no law; a commenced framework may still await operational conditions.

11

LEGITIMACY: GUARDIAN OF IDENTITY OR JUDICIAL SUPREMACY?

CRITIQUE

DEFENCE

Article 368(4)-(5)
Review exclusion
Unlimited-power claim

Sections 4 and 55 void
Limited power + review basic
FR-DPSP harmony basic

I.R. COELHO 2007

Affected Part III right
Underlying basic feature
Damaging effect of immunity

REMEDY

Reviewable != automatically void
Basic-structure impact required
Severability where possible

MENT

ver + FR-DPSP harmony
ts 32 and 226/227
feature impact

INSTITUTIONAL INDEPENDENCE

- NJAC: judicial independence
- 99th Amendment invalid
- Feature + text + case + damage

106TH AMENDMENT

S.O. 1922(E): 16 Apr 2026
Framework commenced
Article 334A gates remain

STATUS DISCIPLINE

Proposal != law
Commencement != operation
No invented dates or outcomes

- Kesavananda opinions: supremacy, democracy, secularism
- Indira Gandhi: fair elections, rule of law, review
- Bommai: federalism and secularism context

- Minerva: limited power + FR-DPSP harmony
- L. Chandra Kumar: Arts 32 and 226/227
- Coelho: rights/basic-feature impact

ANSWER-GRABBING LINE A defensible feature claim identifies its constitutional foundation, precedent and functional injury.

TRAP: Bommai was an Article 356 case, not itself an amendment-invalidation case.

10

ORDINARY-LAW FIREWALL AND CURRENT STATUS

ANJUM KADARI 2024

Statute challenge needs competence
Or Part III / another provision
No free-standing basic-structure invalidity

131ST BILL 2026

298 ayes / 230 noes / 528 voting
Total-membership limb passed
Two-thirds limb failed: negated

ANSWER-GRABBING LINE Use current evidence to illuminate procedure, never to replace the constitutional rule.

TRAP: a defeated Bill creates no law; a commenced framework may still await operational conditions.

11

LEGITIMACY: GUARDIAN OF IDENTITY OR JUDICIAL SUPREMACY?

CRITIQUE

- Unwritten and open-ended
- Counter-majoritarian finality
- Ex ante uncertainty
- Policy-veto risk

DEFENCE

- Article 368 grants amendment, not destruction
- Democracy needs future contestability
- Rights, federal voice and review
- Minerva blocks self-enlargement

ANSWER-GRABBING LINE Basic structure is legitimate as disciplined judicial review, not as an undefined judicial preference.

TRAP: judicial review and judicial supremacy are not synonyms.

12

FINAL ANSWER SPINE: TRANSFORMATION WITHOUT REPLACEMENT

PROCEDURE

Route
House thresholds
State consent
Assent/status

DOCTRINE

Article 13 dialogue
Kesavananda holding
Later applications
Ninth Schedule test

ANSWER-GRABBING LINE Parliament may pursue transformative amendment, but cannot use derived power to replace the constitutional order.

PYQ ROUTE: 2019 limited power | 2025 procedural + substantive limits | Prelims exact distinctions.

er + FR-DPSP harmony
ts 32 and 226/227
feature impact

- NJAC; judicial independence
- 99th Amendment invalid
- Feature + text + case + damage

106TH AMENDMENT

S.O. 1922(E); 16 Apr 2026
Framework commenced
Article 334A gates remain

STATUS DISCIPLINE

Proposal != law
Commencement != operation
No invented dates or outcomes

endment, not destruction
ture contestability
and review
enlargement

SELF-RESTRAINT

- Text + structure + precedent
- Prove actual disabling damage
- Distinguish regulation from destruction
- Use narrow, severable remedies

EVALUATION

Legitimacy critique
Constitutional defence
Self-restraint
Severability

VERDICT

Every Part amendable
Basic identity indestructible
Ordinary laws need express hook
New constitution != Article 368

al order.